

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ariel Courage	Team: Squad #06	CCRB Case #: 201601977	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 03/09/2016 1:19 AM	Location of Incident: § 87(2)(b) and the 10th Precinct stationhouse	18 Mo. SOL 9/9/2017	Precinct: 10
Date/Time CV Reported Wed, 03/09/2016 2:54 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 03/09/2016 2:54 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Vincent Fontana	03556	931673	010 PCT
2. An officer			010 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Daniel Dongvort	03129	951687	010 PCT
2. POM Ryan Mcgrattan	24766	953085	010 PCT
3. POM Ryan Mcardle	00634	953233	010 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Vincent Fontana	Abuse: Inside § 87(2)(b) in Manhattan, Sgt. Vincent Fontana stopped § 87(2)(b)	A . Exonerated
B . SGT Vincent Fontana	Force: Inside § 87(2)(b) in Manhattan, Sergeant Vincent Fontana pointed his gun at § 87(2)(b)	B . Exonerated
C . SGT Vincent Fontana	Abuse: Inside § 87(2)(b) in Manhattan, Sergeant Vincent Fontana threatened § 87(2)(b) with the use of force.	C . Unsubstantiated
D . SGT Vincent Fontana	Abuse: Inside § 87(2)(b) in Manhattan, Sergeant Vincent Fontana frisked § 87(2)(b)	D . Exonerated
E . SGT Vincent Fontana	Abuse: Inside § 87(2)(b) in Manhattan, Sgt. Vincent Fontana searched § 87(2)(b)	E . Unsubstantiated
F . SGT Vincent Fontana	Abuse: Inside § 87(2)(b) in Manhattan, Sergeant Vincent Fontana detained § 87(2)(b)	F . Substantiated
G . An officer	Abuse: In front of § 87(2)(b) in Manhattan, an officer strip-searched § 87(2)(b)	G . Officer(s) Unidentified
H . SGT Vincent Fontana	Abuse: At the 10th Precinct stationhouse, Sergeant Vincent Fontana strip-searched § 87(2)(b)	H . Substantiated

Case Summary

§ 87(2)(g)

On March 9, 2016, § 87(2)(b) filed this complaint online with the CCRB (BR 01).

On March 9, 2016, at approximately 1:19 a.m., inside of § 87(2)(b) in Manhattan, Sgt. Vincent Fontana of the 10th Precinct stopped § 87(2)(b) (**Allegation A**). Sgt. Fontana pointed his gun at § 87(2)(b) (**Allegation B**). Sgt. Fontana told § 87(2)(b) “Stop moving or I’ll shoot.” (**Allegation C**) Sgt. Fontana frisked and searched § 87(2)(b) (**Allegation D and E**).

Sgt. Fontana’s partner, PO Daniel Dongvort, handcuffed § 87(2)(b) Sgt. Fontana decided to bring § 87(2)(b) back to the 10th Precinct stationhouse for further investigation (**Allegation F**).

§ 87(2)(b) was escorted from § 87(2)(b) to a marked police vehicle. Before § 87(2)(b) was placed into the marked police vehicle, an unidentified police officer pulled the waistband of his pants outward, which § 87(2)(b) alleged exposed his underwear to public view (**Allegation G**).

§ 87(2)(b) was transported to the 10th Precinct stationhouse, where Sgt. Fontana authorized a strip search of § 87(2)(b) (**Allegation H**).

§ 87(2)(b) was released from the 10th Precinct stationhouse with a voided arrest (BR 02).

There is no video footage of this incident.

Mediation, Civil and Criminal Histories

- This case was not eligible for mediation due to the voided arrest.
- As of July 12, 2016, § 87(2)(b) has not filed a Notice of Claim with respect to this incident (BR 03).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed the following CCRB complaints (BR 05):
 - § 87(2)(b)
- PO Dongvort has been a member of the service for four years. There is one prior allegation against him from a case that occurred in 2015, which was exonerated. § 87(2)(g)
- Sgt. Fontana has been a member of the service for 13 years. There are 26 prior allegations against him from 12 cases that occurred between 2004 and the present date, the following of which have been substantiated:
 - In CCRB case 200507325, allegations of a question/stop and search of person were substantiated. The Board recommended charges. Sgt. Fontana received command discipline A.

Potential Issues

- Due to initial confusion regarding the incident location, video footage was subpoenaed from § 87(2)(b), a neighboring building in the § 87(2)(b), not § 87(2)(b). By the time this error was realized, video footage from § 87(2)(b)

§ 87(2)(b) had been expunged (BR 31). As such, the investigation was unable to obtain video footage of this incident.

- The investigation was not able to identify the officer who allegedly strip searched § 87(2)(b) at the scene of his arrest.

§ 87(2)(b) (BR 06 and 07) said that PO Dongvort, Sgt. Fontana, and one or two other officers, none of whom he could describe, escorted him from the building to a marked police vehicle. The officers placed § 87(2)(b) front-first against the marked police vehicle. An officer – § 87(2)(b) could not tell which, as they were positioned behind him – stuck one of their fingers beneath the waistband on § 87(2)(b)'s jeans and underwear and pulled them back, but not down, as though peering inside. The officer held § 87(2)(b)'s pants in this fashion for a few seconds. § 87(2)(b) believed that as a result of this his underwear was exposed to public view. There were observers gathered outside of the building, but § 87(2)(b) did not think they would have been able to see the frisk or search of his person as officers kept them at a remove from the scene.

§ 87(2)(b) believed that his friend, § 87(2)(b) § 87(2)(b) who lives in § 87(2)(b), a neighboring building in the § 87(2)(b), was watching this incident from his apartment window and saw § 87(2)(b) be escorted from § 87(2)(b) to a marked police vehicle for transport. § 87(2)(b) (BR 08) confirmed that from his apartment window he saw § 87(2)(b) be escorted by a couple of officers, none of whom § 87(2)(b) could describe, to a marked police vehicle parked on § 87(2)(b). § 87(2)(b) did not see any officer search § 87(2)(b) in the fashion § 87(2)(b) alleged, though he noted he might not have been able to see this even if it did occur due to his removed vantage point and the number of officers surrounding § 87(2)(b).

The investigation determined that there were likely four officers involved in escorting § 87(2)(b) to a marked police vehicle for transport: PO Dongvort, § 87(2)(b)'s arresting officer; Sgt. Fontana, the supervisor authorizing § 87(2)(b)'s arrest; and PO McGrattan and PO McArdle, two officers assigned to transport § 87(2)(b) back to the stationhouse.

PO Dongvort (BR 09) knew that other officers assisted him in escorting § 87(2)(b) from the building to a marked police vehicle for transport, but could not identify these officers and did not know how many there were. PO Dongvort did not remember whether any frisk or search of § 87(2)(b) was conducted before he was placed in the vehicle for transport. PO Dongvort denied that he ever pulled out the waistband of § 87(2)(b)'s pants or exposed his underwear to public view. PO Dongvort denied seeing any officer do so.

Sgt. Fontana (BR 10) believed that § 87(2)(b) was frisked and searched before he was placed into the marked police vehicle for transport, but did not know by whom. The frisk consisted of a pat down of the exterior of his clothing from his head to his feet and the search consisted of reaching into all of § 87(2)(b)'s pockets. Sgt. Fontana never pulled back the waistband of § 87(2)(b)'s pants or exposed his underwear to public view, or ever saw any officer do so.

PO McGrattan (BR 11) knew that he and PO McArdle placed § 87(2)(b) in their police vehicle for transport. PO McGrattan did not remember if PO Dongvort and Sgt. Fontana were also present. PO McArdle quickly “tossed,” or frisked, § 87(2)(b) by patting the exterior circumference of § 87(2)(b)'s waistband and his pockets. PO

McGrattan never pulled out the back of § 87(2)(b)'s pants, or saw any officer do so. § 87(2)(b)'s underwear was not exposed to public view.

PO McArdle (BR 12) said that he and PO McGrattan placed § 87(2)(b) in their police vehicle for transport. PO McArdle and PO McGrattan both conducted a quick protective frisk of § 87(2)(b) prior to placing him in the vehicle. PO McArdle denied that he or any other officer pulled back § 87(2)(b)'s pants, or that § 87(2)(b)'s underwear was ever exposed to public view.

§ 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

- **Stop, Gun Pointed, Threat of Force, Frisk, and Search:** § 87(2)(b) alleged that the officer who pointed his gun at him, said, “Stop moving or I’m going to shoot,” frisked § 87(2)(b) and searched him, as a white male, bald, 6’1” to 6’2” tall, slimly built, in his late 20s or 30s, and uniformed. § 87(2)(b) believed this was his arresting officer because this officer placed the handcuffs upon him. This officer appeared to be with a second officer, described as a white male with black hair, mid- to late-20s, slim to average build, uniformed, about 6’0” tall, with scruff on his face, who approached § 87(2)(b) slightly after the first officer.

Sgt. Fontana, as a § 87(2)(b)-old bald white male, § 87(2)(b), with blue eyes (BR 13), most closely matches the description of the first officer provided by § 87(2)(b). PO Dongvort, a § 87(2)(b)-old white male, § 87(2)(b), with brown hair and eyes (BR 14), most closely matches the description of the second officer provided by § 87(2)(b).

In their CCRB interviews, however, Sgt. Fontana and PO Dongvort both said that PO Dongvort was the first to enter the building and approach § 87(2)(b).

§ 87(2)(g)

- **Detainment:** Sgt. Fontana acknowledged that it was his decision to place § 87(2)(b) under arrest and to bring him back to the 10th Precinct stationhouse for further investigation. § 87(2)(g)

- § 87(2)(g)

- § 87(2)(g)

Allegation A – Abuse of Authority: Inside § 87(2)(b) in Manhattan, Sergeant Vincent Fontana stopped § 87(2)(b)

It is not disputed that Sgt. Fontana stopped § 87(2)(b) in the lobby of § 87(2)(b).

§ 87(2)(b) (BR 06 and 07) did not know why he was stopped. § 87(2)(b) is a § 87(2)(b) dark-complexioned black male, approximately 5'10" tall, 185 pounds, with black hair and brown eyes (BR 15). § 87(2)(b) said that at the time of this incident he was wearing white sneakers, blue and white pants, and a green "flight jacket."

As per the EVENT report (BR 16) and the communications CD (BR 17 to 19), at 1:12 a.m., an unidentified male individual called 911 and reported that a dark-complexioned black male, approximately 5'7" tall, and wearing a green bubble jacket had just attempted to rob him at gunpoint in the lobby of § 87(2)(b). The call was classified as a robbery in progress.

Based upon the EVENT report, multiple officers of the 10th Precinct and of PSA 4 responded to § 87(2)(b), but could not locate the victim and requested that the dispatcher attempt to call the victim back. The dispatcher attempted to do so, but reached a voicemail. Officers of the 10th Precinct and of PSA 4 began canvassing the area in regards.

Sgt. Fontana (BR 10) said that after hearing this report via radio, he and PO Dongvort began driving around the § 87(2)(b), canvassing for the perpetrator. As Sgt. Fontana was driving on § 87(2)(b), a street cutting through the development, Sgt. Fontana observed § 87(2)(b) walking on a path in the development towards the entrance of § 87(2)(b). § 87(2)(b) is approximately one block north of § 87(2)(b) (BR 20). Although Sgt. Fontana could not recall what description of the perpetrator was reported at the time of his CCRB interview, he could tell that § 87(2)(b) generally fit the provided description. Sgt. Fontana was unsure how long he was canvassing for the perpetrator before he observed § 87(2)(b).

Sgt. Fontana and PO Dongvort then exited their police vehicle and followed § 87(2)(b) into the stairwell of the lobby of § 87(2)(b), where they stopped him.

PO Dongvort (BR 09) closely corroborated Sgt. Fontana's account.

The EVENT report, communications CD, and Sgt. § 87(2)(b)'s memo book (BR 21), reflect that Sgt. Fontana reported to the dispatcher at 1:22 a.m. that he had one male under arrest at § 87(2)(b).

When an officer has reasonable suspicion that someone is engaged in criminal activity, he may stop the individual. People v. De Bour, 40 N.Y.2d 210 (1976) (BR 22) A police radio transmission that relays a general description of a perpetrator provides reasonable suspicion to stop an individual who matches that description and is in close spatial and temporal proximity to the report crime. People v. Holland, 4 A.D.3d 375 (2nd Dept. 2004) (BR 23)

§ 87(2)(g)

As such, it is recommended that **Allegation A** be closed as **exonerated**.

Allegation B – Force: Inside § 87(2)(b) in Manhattan, Sergeant Vincent Fontana pointed his gun at § 87(2)(b)

§ 87(2)(b) (BR 06 and 07) alleged that in the course of effecting the stop, Sgt. Fontana pointed his gun at him.

Sgt. Fontana (BR 10) said that he entered § 87(2)(b) after PO Dongvort, and did not see how exactly the stop of § 87(2)(b) was effected. Sgt. Fontana did not recall seeing PO Dongvort point his gun at § 87(2)(b) and did not recall doing so himself.

PO Dongvort (BR 09) similarly stated that he entered § 87(2)(b) ahead of Sgt. Fontana. PO Dongvort acknowledged that when he stopped § 87(2)(b) he had his gun drawn and pointed at him. PO Dongvort drew and pointed his weapon at § 87(2)(b) because he feared for his safety given that § 87(2)(b) matched the reported description of an armed robber. PO Dongvort otherwise had no cause to fear for his safety at this time.

An officer can draw and point his firearm when he has a reasonable fear for his or another's personal safety. PD v. Gliner, OATH Index No. 955/00 (200) (BR 24)

§ 87(2)(g)
It is therefore recommended that **Allegation B** be closed as **exonerated**.

Allegation C – Abuse of Authority: Inside § 87(2)(b) in Manhattan, Sergeant Vincent Fontana threatened § 87(2)(b) with the use of force.

§ 87(2)(b) (BR 06 and 07) alleged that when he was stopped, Sgt. Fontana told him, “Freeze.” § 87(2)(b) moved both of his hands so that they were up near his head where Sgt. Fontana could see them with his cell phone in his left hand. Sgt. Fontana told § 87(2)(b) “Stop moving or I’ll shoot.” § 87(2)(b) dropped his cell phone from his hand to the ground so that his palms were open. § 87(2)(b) begged Sgt. Fontana for his life, told him that he did not have anything on him, and that he was not moving.

As was previously discussed, Sgt. Fontana (BR 10) said that he entered § 87(2)(b) after PO Dongvort and did not actually effect the stop of § 87(2)(b) or see exactly how the stop of § 87(2)(b) was effected. Sgt. Fontana denied ever threatening to shoot § 87(2)(b) or hearing PO Dongvort do so.

PO Dongvort (BR 09) said that he lost sight of § 87(2)(b) for approximately two seconds as he came in to § 87(2)(b), but upon entry into the lobby saw § 87(2)(b) standing behind the open door of the stairwell. PO Dongvort approached the stairwell with his gun drawn. PO Dongvort held the door of the stairwell open with his shoulder. PO Dongvort could not recall the exact course of events, but knew that he ordered § 87(2)(b) to show his hands. As § 87(2)(b) brought his hands up to his head, PO Dongvort saw an object in § 87(2)(b)'s hands. PO Dongvort could not tell what this object was, and ordered § 87(2)(b) to drop it. § 87(2)(b) complied. Another officer – PO Dongvort could not remember who – later recovered this object, which turned out to be a cell phone. PO Dongvort ordered § 87(2)(b) to step out of the stairwell with his hands up. § 87(2)(b) complied. PO Dongvort did not recall telling § 87(2)(b) “Stop moving or I’ll shoot.” PO Dongvort did not hear Sgt. Fontana say this.

§ 87(2)(g)
As such, it is recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation D – Abuse of Authority: Inside § 87(2)(b) in Manhattan, Sergeant Vincent Fontana frisked § 87(2)(b)

Allegation E – Abuse of Authority: Inside § 87(2)(b) in Manhattan, Sergeant Vincent Fontana searched § 87(2)(b)

Allegation F – Abuse of Authority: Inside § 87(2)(b) in Manhattan, Sergeant Vincent Fontana detained § 87(2)(b)

It is not disputed that § 87(2)(b) was frisked once he was stopped. It is also not disputed that § 87(2)(b) was searched, § 87(2)(g)

§ 87(2)(b) (BR 06 and 07) alleged that once he stepped out of the hallway from the stairwell, Sgt. Fontana patted down the exterior of § 87(2)(b)'s clothing and then immediately reached into § 87(2)(b)'s pockets without removing any objects. PO Dongvort handcuffed § 87(2)(b). § 87(2)(b) could not estimate how long he was kept on scene for approximately before he was escorted to a marked police vehicle and driven back to the 10th Precinct stationhouse. At the 10th Precinct stationhouse, PO Dongvort lodged § 87(2)(b) in a holding cell. § 87(2)(b) was unable to estimate how long he was at the 10th Precinct stationhouse for in total. At some juncture prior to his release, Sgt. Fontana came to the holding cell, told him that he had matched the description of an armed robber, and apologized to him. § 87(2)(b) was then released without a summons or arrest.

Sgt. Fontana (BR 10) did not believe he personally frisked or searched § 87(2)(b). Once § 87(2)(b) stepped out of the stairwell into the hallway, PO Dongvort handcuffed § 87(2)(b) and frisked him by patting down his pockets. No bulges had been observed upon § 87(2)(b)'s person; aside from § 87(2)(b) matching the description of a gunpoint robber, there was no other reason to frisk him. Sgt. Fontana requested additional units to the scene. They remained on scene for approximately 10 minutes attempting to find the victim of the gunpoint robbery for purposes of conducting a show-up. The officers attempted to find him by having the dispatcher call the victim back. The dispatcher was not able to get in contact with the victim. Sgt. Fontana at that juncture decided to transport § 87(2)(b) back to the 10th Precinct stationhouse for further investigation. PO Dongvort did not search § 87(2)(b) until Sgt. Fontana decided to transport § 87(2)(b) back to the 10th Precinct stationhouse.

Upon arrival at the 10th Precinct stationhouse, Sgt. Fontana made further attempts to locate the victim of the armed robbery by running a reverse search of the victim's phone number to find their address and name. Sgt. Fontana then sent officers to the victim's address to speak with the victim, but when they visited the address the victim denied that he ever called 911 or was the victim of an armed robbery. Sgt. Fontana also spoke with the Detective Squad in regards to § 87(2)(b)'s arrest. Sgt. Fontana did so because at the beginning of his tour he had been informed that there had been a shooting nearby in the § 87(2)(b) earlier, or at approximately 8:15 p.m. on March 8, 2016, and he was concerned that the armed robbery might in some way be connected to the shooting. The Detective Squad at this time informed Sgt. Fontana that § 87(2)(b) had already been questioned in regards to the shooting (see CCRB case § 87(2)(b)). Sgt. Fontana took no further investigative actions before § 87(2)(b) was released with a voided arrest due to a lack of probable cause. Sgt. Fontana did not recall to whom he spoke in the 10th Precinct Detective Squad.

PO Dongvort (BR 09) closely corroborated Sgt. Fontana's account. PO Dongvort did not feel any bulges consistent with a weapon on § 87(2)(b)'s person in the course of conducting the frisk. PO Dongvort considered § 87(2)(b) to be under arrest immediately once he was stopped and therefore also searched him.

The attempts of the officers to reach the victim while still at the scene where § 87(2)(b) was detained are documented in the EVENT report (BR 16).

An officer must have reasonable suspicion that a suspect is armed to conduct a frisk. People v. DeBour, 40 N.Y.2d 210 (N.Y.S. Court of Appeals) (1976) (BR 22) Once the limited intrusion of a frisk fails to reveal a weapon and the basis for the officer's for his safety has therefore been abated, a more intrusive search will not be justified. People v. Rodriguez, 856 NYS 2.d 502 [Sup. Bronx] (2008) (BR 25)

When an arrest has been effected, the arresting officer should immediately field search and frisk the prisoner for weapons, evidence, and contraband. Patrol Guide Procedure 208-03 (BR 26) The fact that the search precedes the formal arrest is irrelevant so long as the search and arrest are nearly simultaneous so as to constitute one event. People v. Reid, 24 N.Y.3d 615 (2014) (BR 27) To determine whether an investigative detention is reasonably related in scope to the circumstances justifying the stop, common sense and ordinary human experience must govern over rigid criteria. People v. Castro, 206 A.D.2d 333 (App. Div. 1st Dep't) (1994) (BR 31) Detention and transportation of a person detained for investigation does not necessarily exceed the boundaries of a lawful investigatory stop, provided that officers are diligently pursuing a minimally intrusive means of investigation likely to confirm or dispel suspicion. People v. Hicks, 68 N.Y.2d 234 (1986) (BR 32) A reasonable investigatory detention must be temporary and last no longer than is necessary to confirm or display the officer's suspicions and methods employed should be the least intrusive reasonably available; in People v. Robinson, 282 A.D.2d 75 (App. Div. 1st Dep't) (2001) (BR 28), an officer's initial investigatory stop of a defendant elevated into an arrest requiring probable cause when the defendant was handcuffed, involuntarily transported back to the police station, and placed in a cell for two or three hours.

§ 87(2)(g)

As such, it is recommended that **Allegation D** be closed as **exonerated**.

§ 87(2)(g)

As such, it is recommended that **Allegation F** be closed as **substantiated**.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

As such, it is recommended that **Allegation E** be closed as **unsubstantiated**.

Allegation G – Abuse of Authority: In front of § 87(2)(b) in Manhattan, an officer strip searched § 87(2)(b)

§ 87(2)(b) (BR 06 and 07) could not estimate how long he was held in the building for approximately before he was removed to a marked police vehicle parked outside § 87(2)(b). Sgt. Fontana, PO Dongvort, and one or two other officers who § 87(2)(b) could in no way describe escorted him to this vehicle. Once § 87(2)(b) reached the vehicle, the officers placed § 87(2)(b) front first against it. An officer – § 87(2)(b) could not tell which – then stuck one of their fingers beneath the rear waistband on § 87(2)(b)'s jeans and underwear and pulled them back, but not down, as though peering inside. The officer held § 87(2)(b)'s pants like this for a few seconds. § 87(2)(b) believed that as a result of this his underwear was exposed to public view.

§ 87(2)(g)

As such, it is recommended that **Allegation G** be closed as **officer unidentified**.

Allegation H – Abuse of Authority: At the 10 Precinct stationhouse in Manhattan, Sergeant Vincent Fontana authorized a strip search of § 87(2)(b)

It is not disputed that Sgt. Fontana authorized a strip search of § 87(2)(b) upon their return to the 10th Precinct stationhouse.

§ 87(2)(b) (BR 06 and 07) said that upon arrival at the 10th Precinct stationhouse, he was placed into a holding cell. § 87(2)(b) was in the holding cell only briefly before PO Dongvort removed him again and brought him to a bathroom at the rear of the 10th Precinct stationhouse. PO Dongvort instructed § 87(2)(b) to remove each article of clothing he wore one by one. Nothing was recovered from the strip search.

At the time of his CCRB interview, Sgt. Fontana (BR 10) had no recollection of authorizing a strip search. Reviewing the command log (BR 29), which documents that § 87(2)(b) arrived back to the 10th Precinct stationhouse at 1:40 a.m. and that Sgt. Fontana authorized the strip search at 1:45 a.m., did not refresh Sgt. Fontana's recollection. Sgt. Fontana could not recall if he ever suspected that § 87(2)(b) of having contraband secreted underneath his clothing, but noted it was possible that § 87(2)(b) "could have had a gun" under his clothing, as it is not unusual for people to secrete guns in their underwear, pants, or groin area. Aside from § 87(2)(b) matching a description of a perpetrator reported to have a gun, Sgt. Fontana had no other indication that § 87(2)(b) was armed or had contraband underneath his clothing that he could recall. Sgt. Fontana characterized § 87(2)(b) as behaving calmly throughout this encounter.

PO Dongvort (BR 09) said that Sgt. Fontana authorized the strip search. PO Dongvort had no explicit conversation with Sgt. Fontana about why the strip search was being authorized, but PO Dongvort independently suspected that § 87(2)(b) might have had contraband secreted underneath his clothing as he matched the description provided of an armed robber, and no gun had been discovered on his person through previous, less intrusive frisks and searches. PO Dongvort also suspected that § 87(2)(b) might have had contraband secreted on his person because in between his arrival back at the 10th Precinct stationhouse and when the strip search

As such, it is recommended that **Allegation H** be closed as **substantiated**.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date